

Court No. - 39

Case :- WRIT - C No. - 3631 of 2019

Petitioner :- Muntshir

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Shravan Kumar Pandey, Shyam Narain Pandey

Counsel for Respondent :- C.S.C., Rajesh Kumar Sachan

Hon'ble B. Amit Sthalekar, J.

Hon'ble Mrs. Manju Rani Chauhan, J.

Heard Sri S.K. Pandey, learned counsel for the petitioner, learned Standing Counsel for the respondents no. 1, 2 & 3 and Sri R.K. Sachan, learned counsel for the respondent no. 4.

The petitioner in the writ petition is seeking quashing of the recovery citation dated 11.8.2017 whereby a recovery of Rs.53,295/- is sought to be made from him towards arrears of electricity dues. According to the petitioner, an inquiry was conducted by the Electricity Department on 17.11.2017 and a sum of Rs.30,000/- was recovered from him. A perusal of the inquiry report dated 17.11.2017 shows that it is a case of theft of electricity.

Be that as it may, in our opinion, the remedy before the petitioner is to approach the Executive Engineer, Paschimanchal Vidyut Vitran Nigam Ltd., District Hapur, respondent no. 4 under clause 6.8 of the Electricity Supply Code, 2005.

We, therefore, dispose of the writ petition with a direction that if the petitioner appears before the Executive Engineer, Paschimanchal Vidyut Vitran Nigam Ltd., District Hapur, respondent no. 4 on 13.2.2019 at 11 a.m. along with a certified copy of this order as well as his representation, the respondent no. 4 shall hear the petitioner and thereafter, decide the representation in accordance with law within a further period of fifteen days.

If the above condition is complied with by the petitioner, the recovery in pursuance of the impugned citation dated 11.8.2017 shall remain in abeyance and it shall be subject to any final order to be passed by the Executive Engineer, respondent no. 4.

Order Date :- 1.2.2019

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